

Q Critically analyze the shift from Caste-based to multi-axis affirmative action in India with examples from recent state-level initiatives such as sub-categorization and gender based reservation.

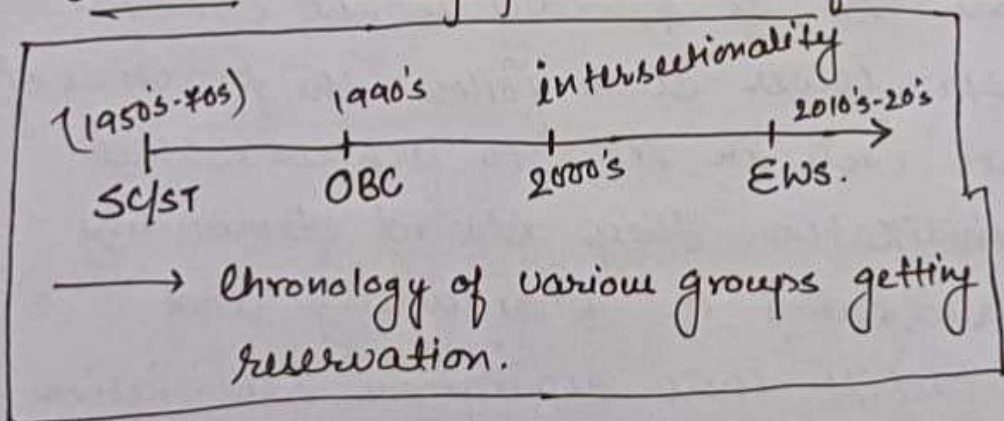
Answer:- India a vastly diverse country, this diversity creates differences, this difference manifests itself into discrimination and to counter this discrimination, State adopts policy of positive affirmation.

One of the positive affirmation is Reservation. Reservation was brought to undo

"Historical Injustice." Initial trend was to give reservation based on Caste.

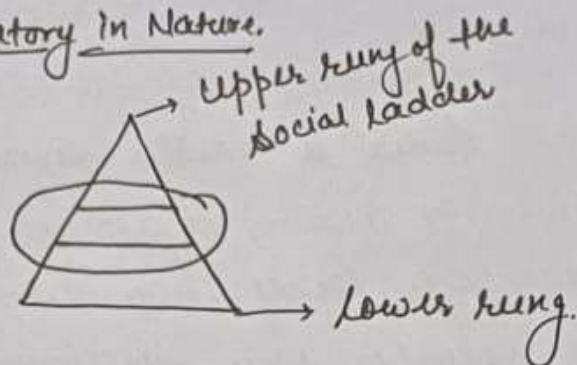
There is shift from Caste-based to multi-axis (ie Caste, Class, Gender, region) affirmative action.

Timeline. - Emerging themes and shift in Criteria.



SC/ST → were given reservation on the basis of Birth-based Caste Stigma and Social Exclusion. These are basically Compensatory in Nature.

OBC :-  
1990's



These groups having economic prosperity got stuck in the social ladder.

They got politically conscious and demanded for their social ~~effort~~ mobilization with the efforts of their leaders like Charen Singh and Mulayam Singh, Ram Manohar Lohiya.

Here the concept of "Sanskritization" coined by M.N. Srinivasan plays a crucial role. In it according to the concept the lower class follows the practices of upper caste in order to achieve social mobilization. They started demanding participation in bureaucracy and to fulfill their aspirations, reservation for them was accepted. Their demand was rooted in educational deprivation and occupational inferiority. These are representational in Nature.

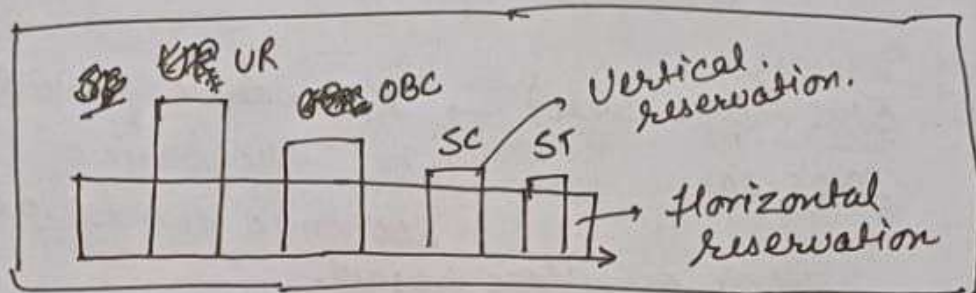


Intersectionality :- Gender based reservation  
2000's The rise of Horizontal Equity.

These are Equity-based.

It was accepted that Caste cannot be the basis for reservation. Therefore other criteria

identity like Gender based reservation was accepted to undo historical injustices of discrimination based on Gender.



To ensure this the concept of Horizontal reservation was adopted because irrespective of Caste women of all groups are the victims of Patriarchy.

Bihar providing 35% reservation for women in all government jobs is ahead of all the states.

Upto this point reservation was confined to social deprivation but after 2010 it shifted to reservation based on economic basis.

There is inherent problem associated with this shift

① Social Conditions are immobile but Economic Condition is mobile Condition.

② According to Supreme Court  
"Reservation is not a poverty alleviation program."

EWS (Upper Caste) → Reservation provided on the basis of economic hardships  
2010's-20's  
These are class based.

It indicates that we diluted the Criteria, which was the base of reservation and we moved towards economic disparity which are different in themselves.

| Era     | Beneficiary | Basis                                           | Feature          |
|---------|-------------|-------------------------------------------------|------------------|
| 1950-70 | SC/ST       | Birth based<br>caste stigma<br>social exclusion | Compensatory     |
| 1990's  | OBC's       | Educational<br>and Social<br>Backwardness       | Representational |
| 2000    | Women       | Gender or<br>structural<br>disadvantage         | Equity-based     |
| 2010-20 | EWS         | Economic<br>Hardship                            | Class-based      |



Sub-Categorization issue:- Reservation benefits are increasingly cornered by the 'creamy layer' within beneficiary groups - especially among OBC's and SC's the most deprived within these groups (eg - Mahadalits, Pasmandas) remain marginalized. This creates intra-caste inequality and erodes the equity logic of reservation.

To tackle this issue, the justice G. Rohini headed Commission for the Sub-Categorization of OBC's caste groups submitted its report.

This Commission was setup under Article 340 of the Constitution which empowers President to appoint a commission to investigate the condition of Backward Classes.

### Way Forward

Affirmative actions (Reservation) is a means for removing inequalities and India's reservation ~~has success~~ system is able to achieve some success.

India's reservation policy must transition from being a reactive measure to a responsive instrument of Equity.

It must address historical injustices without institutionalizing new inequities.

Dr. Ambedkar envisioned, reservation is not the End but the means to an end

that of a truly egalitarian and enlightened  
India.